

IN THE
COUNTY OF UTAH, STATE OF UTAH

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State of Utah

vs.

OBORN, BRANDON GEORGE
Date Of Birth: 04/10/1984
1516 DRYSDALE WAY TOOELE, UT 84074

Affidavit of Probable Cause

Arrestee

On 10/13/2023 15:00 the defendant was arrested for the offense(s) of:

Offense Date	Offense Description	Enhancement	Statute	Severity	Court
1 10/13/2023	AGGRAVATED SEXUAL ASSAULT	DV	76-5-405	F1	DST
2 10/13/2023	DOMESTIC VIOLENCE PRESENCE OF CHILD - INJURY/WEAPON/DEATH		76-5-114(2B)	F3	DST
3 10/13/2023	DOMESTIC VIOLENCE PRESENCE OF CHILD - INJURY/WEAPON/DEATH		76-5-114(2B)	F3	DST
4 10/13/2023	DOMESTIC VIOLENCE PRESENCE OF CHILD - INJURY/WEAPON/DEATH		76-5-114(2B)	F3	DST
5 10/13/2023	RAPE		76-5-402	F1	DST
6 10/13/2023	RAPE		76-5-402	F1	DST
7 10/13/2023	RAPE		76-5-402	F1	DST
8 10/13/2023	RAPE		76-5-402	F1	DST
9 10/13/2023	RAPE		76-5-402	F1	DST
10 10/13/2023	RAPE		76-5-402	F1	DST
11 10/13/2023	RAPE		76-5-402	F1	DST
12 10/13/2023	RAPE		76-5-402	F1	DST
13 10/13/2023	UNLAWFUL DETENTION		76-5-304(2A)	MB	DST

I believe there is probable cause to charge the defendant with these charges because:

On 10/13/2023, at Approximately 1500 hours, Brandon Oborn came to the American Fork Police department to turn himself in for Sexually Assaulting his Wife eight times, with his family in the home.

I spoke with Brandon after Miranda, and he provided a written and verbal statement to Sexually Assaulting his wife on several different occasions while living in American Fork. One specific event, of going in to the locked bathroom and forcing his wife to have sex with him and breaking her clothes off of her and removing her tampon before inserting himself. Brandon does not have a criminal history, however, has admitted by written and a verbal statement that he has done acts like this for the past five years.

After speaking with the victim, she stated that on the several occasions Brandon stated that "this was going to happen whether you let it or not". The victim also stated that she was not allowed to leave the house without Brandon following her or asking where she was. The victim stated that she also remembers waking up the Brandon inside her and still continuing to have sex, regardless of her fear and shock.

The victim has stated that through the past years she has tried to mention these acts however was afraid for her life and the 10 children that they share. The victim stated that she did not fear Brandon would hurt the kids, however, was not sure for their daughters safety due to catching Brandon staring at one of their daughters breasts.

I asked Brandon if he has ever threatened to hurt the victim or her children, Brandon stated he would not hurt his family, however knows that the sexually assaulting his wife has caused pain. Brandon also stated that if he is not stopped today, he does not know if the progression of the rapes can lead to worse danger to the victim or the kids.

As an officer was filling out the DV paperwork, the victim stated that Brandon has strangled her without her consent multiple times, during sexual assaults, for sexual pleasure. The victim could not remember the exact time this happened but stated the most recent time being since she moved to American Fork. The victim could not breathe properly when this was happening, got a headache after the strangulation, and had redness on her neck/throat.

Due to Brandon having prior law enforcement experience and stating phrases of violence if the acts were to continue, I believe Brandon is a danger to the Victim. Therefore I am requesting a no bail due to his long history of raping the victim and previous

experience.

By the written and verbal statements provided by both Brandon and the victim. I find probable cause to arrest Brandon on 76-5-402 Felony Rape (8x), 76-5-405 Aggravated Sexual Assault – Strangulation (DV). Domestic Violence in the presence of a child (3x), and 76-5-304 Unlawful Detention.

By submitting this affidavit, I declare under criminal penalty of the State of Utah that the foregoing is true and correct.
/s/ JAYCOCK, JAKE

Officer Name: JLAYCOCK - JAKE LAYCOCK
A sworn officer with: UT0250100 - American Fork PD
Agency Case: 23AF08825

Probable Cause Entered: 10/13/2023 19:43
Probable Cause ID: 176352
Suggested Bail Amount:

SUBMISSION IDENTIFICATION INFORMATION

Booking Agency: Utah County Sheriff Office

Booking Agency ORI: UT0250000

Agency Inmate ID: 434987

SID: NONE

OTN: 66374893

Arrest Date/Time: 10/13/2023 15:00

FBI ID: NONE